

Notice from the National Commission for Data Protection

regarding Bill No. 8355 amending 1° the amended electoral law of February 18, 2003, and 2° the amended law of June 16, 2017 on the organization of the Council of State
Deliberation No. 16/AV6/2024 of March 8, 2024

1. In accordance with Article 57.1.e) of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (hereinafter referred to as the "GDPR"), to which Article 7 of the law of August 1, 2018, on the organization of the National Commission for Data Protection and the general regime on data protection refers, the National Commission for Data Protection (hereinafter referred to as the "National Commission" or the "CNPDP") "advises, in accordance with the law of the Member State, the national parliament, the government, and other institutions and bodies regarding legislative and administrative measures relating to the protection of the rights and freedoms of natural persons with regard to processing." Article 36.4 of the GDPR states that "[m]ember states consult the supervisory authority in the context of the preparation of a legislative proposal to be adopted by a national parliament, or a regulatory measure based on such a legislative measure, which relates to processing."

2. By letter dated February 21, 2024, Mr. Prime Minister invited the National Commission to express its opinion on the bill amending 1° the amended electoral law of February 18, 2003, and 2° the amended law of June 16, 2017, on the organization of the Council of State (hereinafter referred to as the "bill").

3. It appears from the explanatory memorandum that the main objective of the bill under review is to simplify the procedure for the exchange between Member States of the European Union of data concerning nationals of other Member States who are voters in the European elections in a Luxembourg municipality. In view of the upcoming European elections scheduled for June 9, 2024, the bill under review also proposes to simplify certain procedures in the interest of the actors involved in the organization and conduct of the elections, and to clarify certain provisions to improve legal certainty.

4. The National Commission will provide in this opinion its observations regarding the issues related to the protection of personal data raised by the bill.

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I.

On the exchange of electoral data between the Member States of the European Union (Art. 1 of the draft law)

5. Article 1 of the draft law under review concerns the procedure for the exchange of data between the Member States of the European Union in the context of the European elections in order to prevent double voting and double candidacy, as provided for in Article 9 of the amended electoral law of February 18, 2003. The draft law aims to simplify this procedure by designating the State Centre for Information Technologies (hereinafter referred to as the "CTIE"), instead of the colleges of mayors and aldermen of each municipality, as the authority responsible for the establishment and transmission of a list containing the data of nationals from other Member States of the European Union who are registered on the electoral rolls. It transmits this list to the minister responsible for Foreign Affairs (hereinafter referred to as the "minister") who informs the respective Member States of origin of the registered voters.

6. Thus, the draft law under review establishes a legal obligation to process a certain number of personal data. The CNPDP notes that the establishment and transmission of the list containing the electoral data find their legal basis in Article 6.1.e) of the GDPR under which processing is lawful if it is "necessary for compliance with a legal obligation to which the controller is subject." In this case, Article 6.3 of the GDPR provides a specific constraint related to the lawfulness of processing in that the basis

and purposes of processing must be defined either by European Union law or by national law. Furthermore, this legal basis must serve a public interest objective and be proportionate to the legitimate aim pursued.

7. Indeed, the purpose of the processing is defined in Article 13 of Directive 93/109/EC of the Council of December 6, 1993, laying down the modalities for the exercise of the right to vote and eligibility for elections to the European Parliament for Union citizens residing in a Member State of which they are not nationals, which states that "[M]ember States exchange the necessary information for the implementation of Article 4 [prohibiting double voting and double candidacy]. To this end, the Member State of residence shall transmit, based on the formal declaration referred to in Articles 9 and 10, to the Member State of origin, within an appropriate time before each election, the information relating to the nationals of the latter registered on the electoral rolls or having submitted a candidacy. The Member State of origin shall take, in accordance with its national legislation, the appropriate measures to prevent double voting and double candidacy of its nationals."

1) Categories of data

8. In accordance with Article 5.1.e) of the GDPR, only data that is adequate, relevant, and necessary in relation to the purposes pursued by the data controller shall be collected and processed (data minimization principle). In this case, it concerns the data

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9. concerning nationals of other Member States of the European Union who are voters in the European elections in a Luxembourg municipality. However, Article 1 of the draft law provides that the CTIE establishes this list "based on the data contained in the national register of natural persons as defined by the amended law of June 19, 2013, relating to the identification of natural persons" without specifying which categories of data are actually involved.

As a result, the CNPD questions whether the list prepared by the CTIE contains all the personal data included in the national register of natural persons (hereinafter referred to as the "RNPP"), as enumerated in Article 5 of the aforementioned law. The list established by the CTIE should be limited to only the data necessary for the purposes for which they are processed, such as the name, first name, and date of birth of the voters registered on the electoral rolls, in accordance with the principle of data minimization provided for in Article 5.1.e) of the GDPR.¹

10. Furthermore, the National Commission wishes to emphasize that the processing of personal data falls within a matter reserved for law under Articles 31 and 37 of the Constitution. Thus, it is all the more regrettable that the text of the draft law, by referring to a list established "based on the data contained in the [RNPP]," remains vague and undefined regarding the categories of data that will be included in this list. The CNPD strongly recommends that the text of the draft law exhaustively enumerate the categories of data that may be included, while ensuring compliance with the principle of data minimization.

2) The Authorities in Charge

11. In order to relieve the college of the mayor and aldermen of each municipality, the draft law intends to designate the CTIE as the authority responsible for establishing the list, sorted by nationality, of all nationals of other Member States of the European Union who are voters in the European elections, and for transmitting this list to the minister.

12. The CNPD concludes that the CTIE is the data controller for the establishment of the list and its subsequent transmission to the minister. Similarly, the minister is, in principle, to be considered as the data controller responsible for transmitting the information from said list to the respective Member States of origin of the registered voters. According to the understanding of the CNPD, these are two independent and successive data controllers and not joint controllers of the processing.

13. However, the CNPD notes a certain inconsistency between the text of the draft law and the commentary on the articles. Indeed, according to the commentary on Article 1, "the exchange of these lists..."

1V. in this sense: Opinion 61.346 of the Council of State of May 16, 2023, doc. pari. 8150/01, pp. 5 and 6.

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****I. On the transmission of a list containing electoral data among Member States****

The transmission among Member States is carried out via an electronic platform established and managed by the European Union, with the national manager being the Centre [CTIE] and the minister responsible for Foreign Affairs. The National Commission raises the question of who is actually competent to transmit the list containing electoral data to other Member States and whether there is any potential joint liability. Furthermore, it appears from the impact assessment sheet that the CTIE would be responsible for transmitting said list to other Member States, while the article commentary mentions a prior validation of the list by the municipalities, which, however, is not provided for in the text of the draft law.

14. Consequently, the CNPD would like to remind that the notion of data controller plays an important role in the application of the GDPR as it determines who is responsible for the various rules regarding data protection as well as how the data subjects can exercise their rights. 2 It should also be noted that the notion of (joint) data controller is a functional concept in that it aims to allocate responsibilities based on the actual roles played by the parties. 3 Thus, the provisions of the draft law should nonetheless reflect the reality of the activities carried out by the different actors and thereby provide sufficiently clear indications regarding the entity that is to be considered as the data controller.

****II. On the abandonment of the requirement to provide a list containing data on protected voters (Art. 7 of the draft law)****

15. Currently, Article 89, paragraph 3, of the amended electoral law of February 18, 2003, provides that the civil registry officer at the Public Prosecutor's Office sends a list containing data on protected voters to the colleges of mayors and aldermen of the municipalities of residence of the protected adults, with a view to subsequently handing it over to the main polling stations. The CNPD welcomes the draft law's proposal to eliminate the sending of such a list containing personal data related to protected voters, particularly so-called "sensitive" data, within the meaning of Article 9 of the GDPR, which pertains to the health of the individual concerned.

16. Indeed, the authors of the draft law point out that it is not necessary to transmit this list to the colleges of mayors and aldermen and for the final destination of the main polling stations, so that the elimination of this provision contributes to the respect of the data minimization principle enshrined in Article 5. 1.e) of the GDPR.

2 See in this sense: European Data Protection Board (EDPB), Guidelines 07/2020 on the concepts of controller and processor in the GDPR, p.3, available at: https://edpb.europa.eu/our-work-tools/our-documents/guidelines/guidelines-072020-concepts-controller-and-processor-adpr_fr.

3 Ibid., p.4.

****III. On the abandonment of the obligation to provide the profession of representatives (Art. 9, 19, and 21 of the draft law)****

17. The amended electoral law of February 18, 2003, determines the information on candidates and representatives that must be provided in the list of candidates at the time of submission. The National Commission is pleased that the draft law proposes to abandon the obligation to provide the profession of representatives on this list in the context of legislative, municipal, and European elections (Art. 9, 19,

and 21 of the draft law). The authors rightly indicate in the commentary on the articles that there is no interest in including this personal data in this context and that the aim is to limit the information to what is strictly necessary on said list.

18. The CNPD simply wishes to remind of the importance of the data minimization principle enshrined in Article 5. 1.e) of the GDPR. In this regard, it notes that the information to be provided on the lists of candidates at the time of submission is not the same depending on whether it concerns legislative, municipal, or European elections, without being able to identify a reason justifying this difference in treatment. For example, in the context of legislative elections, the list must include the gender of the representatives, whereas this is not the case for municipal or European elections. The National Commission therefore invites the authors of the draft law to reconsider the necessity of including each personal data in the electoral lists, in order to ensure compliance with the data minimization principle.

Thus adopted in Belvaux on March 8, 2024.

The National Commission for Data Protection

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President

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